



Form 9 – WCR Notice of appeal

*Workers' Compensation and Rehabilitation Act 2003, s 537E(2),
s 548A(1), s 549, s 550(4A)*

Information

- Use this form to appeal a decision of the Workers' Compensation Regulator to the Queensland Industrial Relations Commission in relation to the abovementioned legislation.
- The Appellant must serve a copy of this Notice of appeal on all parties to the appeal.
- Please read this form carefully and complete all relevant sections. Information that is missing or non-compliant with the relevant section of an Act or the Rules may result in the non-acceptance of your form.
- **Please ensure to attach a copy of the decision being appealed against.** Other than the decision appealed against, there should be no supporting or additional documents attached to this form. Supporting or additional documents attached to the form will not be accepted for filing in the Industrial Registry.
- If the Notice of Appeal and attached decision are longer than 30 pages in length, it must be provided to the Industrial Registry in hard copy before it will be accepted for filing.
- The Notice of appeal must be made within 20 business days after the decision being appealed against has been given to/received by the Appellant. Should you wish to seek an extension, please refer to either s 537E(3) of the Act (regarding a compliance notice) or s 550(3) of the Act (regarding compensation) regarding who to make the request to.
- For information on completing this Notice of Appeal regarding a decision relating to compensation, please see the [Workers' Compensation Appeal Guide](#) located on the website www.qirc.qld.gov.au.
- For further information please refer to the website www.qirc.qld.gov.au or contact the Industrial Registry on 1300 592 987 or via email at qirc.registry@qirc.qld.gov.au.

Appellant:

Cory Lea Shepherd

v

Respondent:

WORKERS' COMPENSATION REGULATOR

If there are more than two parties to this application, please complete a **Form 1 – Parties list** and file with this form.

Notice

This is a Notice to the Queensland Industrial Relations Commission that the Appellant seeks to appeal against the decision of the Workers' Compensation Regulator, pursuant to the following section of the *Workers' Compensation and Rehabilitation Act 2003* [please tick one option]:



s 548A(1) and s 549 – regarding an application for **compensation**



s 537E – regarding an application for review of a **compliance notice**

Date of decision of the Workers' Compensation Regulator:

[Ensure to attach a copy of the decision to this Notice]

24th October 2024

1. Appellant's details			
Title [please select]:	☒ Mr ☐ Mrs ☐ Ms ☐ Miss ☐ Mx ☐ Other: _____		
Name of Appellant:	Cory Lea Shepherd		
Name of contact person:	As above		
Postal/Service address:	104 158 scarborough street		
	Suburb/Town Southport	Postcode 4215	
Phone number:		Mobile number:	0422 438 627
Email address:	Coryshepherd1@hotmail.com		

2. Appellant's representative			
Organisation:			
Name of contact person:			
Postal/Service address:			
	Suburb/Town	Postcode	
Phone number:		Mobile number:	
Email address:			

3. Respondent			
Name of Respondent:	WORKERS' COMPENSATION REGULATOR		
Street address:	Level 4, 150 Mary Street, BRISBANE QLD 4000		
Postal/Service address:	PO Box 10119		
	Suburb/Town BRISBANE, ADELAIDE STREET, QLD	Postcode 4000	
Phone number:	1300 362 128		
Email address:	appeals@oir.qld.gov.au		

4. Details of decision being appealed against	
Please outline, in consecutively numbered paragraphs, the details of the decision being appealed against .	
<i>Please attach a schedule if more room required</i> I am writing to formally appeal the decision made by the Workers' Compensation Regulator on 22 October 2024, which upheld WorkCover Queensland's decision to reject my application for compensation for a psychological injury sustained on 18 June 2024. I believe this decision was incorrect and not in accordance with the Workers' Compensation and Rehabilitation Act 2003 (the Act). Below, I outline the grounds for my appeal and provide supporting arguments based on relevant legal	

5. Grounds of the appeal

Please outline, in consecutively numbered paragraphs, the reasons you are making this application to appeal.

Please attach a schedule if more room required

- 1. Unreasonable Management Action - Withholding of Pay** The decision failed to recognize that the withholding of my pay was an unreasonable management action. Despite multiple requests and clear evidence of entitlement, my payments were delayed and mishandled, causing significant financial stress.
In *Blagojevic v AGL Macquarie Pty Ltd* [2018] FWC 2906**, the Fair Work Commission found that using a Performance Improvement Plan (PIP) as a tool for control without a fair basis was unreasonable. Similarly, the withholding of my pay was used to exert undue control and caused undue stress. Payroll Discrepancies: issues such as missed fatigue payments and public holiday entitlements and higher education payments were not adequately addressed in the review, were left incomplete yet were central to the argument.
- 2. Failure to Follow Policies - Rostering Practices** The decision overlooked the employer's failure to adhere to the 10-hour break policy between shifts, as required by the fatigue risk management policy. This failure directly contributed to my psychological injury.
- 3. Holistic Evaluation of Management Actions** While the decision referenced *Delaney v Q-COMP* [2005] QIC 178, which emphasizes a global evaluation of management actions, it failed to adequately weigh the impact of individual unreasonable actions. The single unreasonable action of failing to provide the required break between shifts should be given significant weight. The case of *Carr v Workers' Compensation Regulator* [2022] QIRC 059 outlined that One unreasonable management stressor out of nine enough for application for compensation to be accepted demonstrates that even a single unreasonable action can be sufficient to support a compensation claim.
- 4. Psychological Injury and Employment** The decision did not fully consider the extent to which the unreasonable management actions contributed to my psychological injury. The cumulative effect of these actions created a hostile work environment.
In the case of *Hansen v WorkCover Queensland*, the court highlighted that management actions must be sound and based on reason. The unreasonable delay in addressing pay issues and the manipulation of the roster were unsound and unreasonable, contributing significantly to my psychological injury.
- 5. Union Delegate Issue** The review officer concluded that my employer merely needed to allow for a union to be present. However, this fails to recognize that the Union Encouragement Policy (Policy Number: F4, QH-POL-248) requires active cooperation from all managers and supervisors to ensure compliance with legal obligations. This policy mandates that managers and supervisors take a positive, supportive role in union activities, not just passive acceptance. Ignoring my request for a union delegate and failing to support union activities constitutes adverse discrimination against me as an employee.
Policy Number: F4, QH-POL-248 The Union Encouragement Policy states that "active cooperation of all managers and supervisors throughout Queensland Health is necessary to ensure Queensland Health honours this commitment and complies with its legal obligations. Passive acceptance by managers and supervisors of membership doesn't meet the requirement."
- 6. Ethical Standards Unit Complaint and Response** The review officer's decision failed to consider the ethical standards unit complaint and response. The review officer deemed it reasonable for direct contact while on leave. Ms. Tammy Reese contacted me twice after my injury, despite my medical leave notice. The review officer incorrectly stated that I refused to provide further evidence for the initial complaint. These contacts, made while I was on leave and on WorkCover, worsened my injury and caused additional stress. The review officer's claim that this was reasonable management action contradicts the medical certificate provided.

6. Facts relied upon

Please outline, in consecutively numbered paragraphs, the facts relied upon in the appeal.

Please attach a schedule if more room required

- 1. Payslips, dates, agreements and entitlements**
- 2. In Ms SB [2014] FWC 2104**, it was established that management actions must be lawful and not irrational, absurd, or ridiculous. The failure to provide the required break between shifts was a clear violation of established rules, making the management action unreasonable as my employer sought to refuse fatigue payments following the breach.
- 3. Holistic Evaluation of Management Actions**
While the decision referenced *Delaney v Q-COMP* [2005] QIC 178, which emphasizes a global evaluation of management actions, it failed to adequately weigh the impact of individual unreasonable actions. The single unreasonable action of failing to provide the required break between shifts should be given significant weight. The case of *Carr v Workers' Compensation Regulator* [2022] QIRC 059 outlined that One unreasonable management stressor out of nine enough for application for compensation to be accepted demonstrates that even a single unreasonable action can be sufficient to support a compensation claim.
- 4. Psychological Injury and Employment**
The decision did not fully consider the extent to which the unreasonable management actions contributed to my psychological injury. The cumulative effect of the excessive emails to follow basic agreements. these actions created a hostile work environment.
In the case of *Hansen v WorkCover Queensland*, the court highlighted that management actions must be sound and based on reason. The unreasonable delay in addressing pay issues and the manipulation of the roster were unsound and unreasonable, contributing significantly to my psychological injury.
- 5. Union Delegate Issue**
The review officer concluded that my employer merely needed to allow for a union to be present. However, this fails to recognize that the Union Encouragement Policy (Policy Number: F4, QH-POL-248) requires active cooperation from all managers and supervisors to ensure compliance with legal obligations. This policy mandates that managers and supervisors take a positive, supportive role in union activities, not just passive acceptance. Ignoring my request for a union delegate and failing to support union activities constitutes adverse discrimination against me as an employee.
Policy Number: F4, QH-POL-248 The Union Encouragement Policy states that "active cooperation of all managers and supervisors throughout Queensland Health is necessary to ensure Queensland Health honours this commitment and complies with its legal obligations. Passive acceptance by managers and supervisors of membership doesn't meet the requirement."
- 6. In Hansen v WorkCover Queensland**, the court emphasized that management actions must be sound and reasonable. The actions taken by management in this case were unsound and unreasonable, significantly contributing to my psychological injury.
Email correspondence Ms. Reese to directly contact me and request two consecutive meetings about the complaint.
I had informed the ethical department that I would provide further evidence to support my claim but was unable to do so due to my medical condition as such the complaint was dismissed without investigation. It was unreasonable for direct contact via email with Ms. Reese scheduled meetings on July 12th and 16th, 2024, to discuss why the ethical concerns and complaint were closed, knowing I was on leave and on WorkCover. I found this contact frivolous and adversarial, and I did not respond as my medical certificate required time away from the workplace. I challenge the assertion that Ms. Reese's actions were reasonable management actions, as they were against medical advice and unreasonable given my injury.
- 7. Misinterpretation of Legal Precedent and Human Rights**
I believe that the review officer's decision was made in favor of my employer due to both the misapplication of the law misinterpretation or the evidence being presented either not understood or not taken into consideration. The officer selectively applied cases to conclude a decision that favored Queensland Health, thereby limiting a fair treatment and my human rights

7. Decision sought

The Appellant seeks the following orders [please tick]:

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That the Appeal be allowed

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That the decision of the Respondent be set aside

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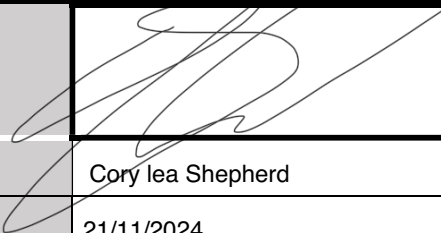
That the Respondent pay the Appellant's costs of the hearing

☐

Any other orders – outline below

8. Signature of Appellant or representative

Signature:



Name:

Cory lea Shepherd

Date:

21/11/2024

REMEMBER TO ATTACH A COPY OF THE DECISION BEING APPEALED AGAINST TO THIS NOTICE OF APPEAL